

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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MAMUD JAWANEH,

SUMMONS

Plaintiff,

-against-

Index No.:

CITY OF NEW YORK, JOAN CORDERO, DANNY
AGUILAR, SHEIKH AKTARUZZAMAN, HILMEE
KASSIM, and JOHN/JANE DOE # 1 - 10,

Date Filed:

Defendants.
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To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action, and to serve a copy of your Answer, or if the Complaint is not served with this Summons, to serve a Notice of Appearance on the attorneys of Plaintiff within twenty days after the service of this Summons exclusive of the day of service, where service is made by delivery upon you personally within the state, or within thirty days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Plaintiff designates Bronx County as the place of trial. The basis of venue is the location of the incident.

The incident occurred at 406 East 161st Street, Bronx, New York.

Dated: New York, New York
February 2, 2024

/s/

Gregory Paul Mouton, Jr., Esq.
Law Office of Gregory P. Mouton, Jr., LLC
Attorneys for Plaintiff Mamud Jawaneh
10 Times Square, 6th Floor
New York, NY 10018
Phone: (646) 706-7481

Defendant Addresses:

City of New York
100 Church Street
New York, NY 10007

Joan Cordero
450 Cross Bronx Expressway
Bronx NY 10457

Danny Aguilar
830 Washington Avenue
Bronx, NY 10451

Sheikh Aktaruzzaman
830 Washington Avenue
Bronx, NY 10451

Hilmee Kassim
450 Cross Bronx Expressway
Bronx NY 10457

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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MAMUD JAWANEH,

Plaintiff, VERIFIED COMPLAINT

-against-

Index No.

CITY OF NEW YORK, JOAN CORDERO, DANNY
AGUILAR, SHEIKH AKTARUZZAMAN, HILMEE
KASSIM, and JOHN/JANE DOE # 1 - 10,**JURY TRIAL DEMANDED**

Defendants.

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Plaintiff Mamud Jawaneh, by his attorneys, Law Office of Gregory P. Mouton, Jr., LLC,
respectfully alleges:

NATURE OF THE ACTION

1. This is an action to recover money damages arising out of the violation of his rights under the Constitution of the United States, the Constitution of the State of New York, and the laws of the State of New York.

JURISDICTION AND VENUE

2. The incident occurred at 406 East 161st Street, Bronx, New York.

3. This action falls within one or more of the exemptions set forth in N.Y. Civ. Proc. L. & R. § 1602.

JURY DEMAND

4. Mr. Jawaneh demands a trial by jury in this action.

PARTIES

5. Plaintiff Mamud Jawaneh is a resident of the County of Bronx, State of New York.

6. Defendant City of New York is a municipal organization organized under the laws of the State of New York.

7. Defendant City of New York operates the New York City Police Department (“NYPD”), a department or agency of Defendant City of New York.

8. The NYPD is responsible for the appointment, training, supervision, promotion, and discipline of police officers and supervisory police officers, including the individually named defendants herein.

9. At all times relevant herein, Defendant Joan Cordero was an officer, employee, and/or agent of Defendant City of New York.

10. At all times relevant herein, Defendant Cordero was acting within the scope of his employment with Defendant City of New York.

11. At all times relevant herein, Defendant Cordero was acting under color of state law.

12. Defendant Cordero is sued in his individual and official capacities.

13. At all times relevant herein, Defendant Danny Aguilar was an officer, employee, and/or agent of Defendant City of New York.

14. At all times relevant herein, Defendant Aguilar was acting within the scope of his employment with Defendant City of New York.

15. At all times relevant herein, Defendant Aguilar was acting under color of state law.

16. Defendant Aguilar is sued in his individual and official capacities.

17. At all times relevant herein, Defendant Sheikh Aktaruzzaman was an officer, employee, and/or agent of Defendant City of New York.

18. At all times relevant herein, Defendant Aktaruzzaman was acting within the scope of his employment with Defendant City of New York.

19. At all times relevant herein, Defendant Aktaruzzaman was acting under color of state law.

20. Defendant Aktaruzzaman is sued in his individual and official capacities.

21. At all times relevant herein, Defendant Hilmee Kassim was an officer, employee, and/or agent of Defendant City of New York.

22. At all times relevant herein, Defendant Kassim was acting within the scope of his employment with Defendant City of New York.

23. At all times relevant herein, Defendant Kassim was acting under color of state law.

24. Defendant Kassim is sued in his individual and official capacities.

25. At all times relevant herein, Defendants John/Jane Doe # 1 - 10 were supervisors, officers, employees, and/or agents of Defendant City of New York.

26. At all times relevant herein, Defendants John/Jane Doe # 1 - 10 were acting within the scope of their employment with Defendant City of New York.

27. At all times relevant herein, Defendants John/Jane Doe # 1 - 10 were acting under color of state law.

28. Defendants John/Jane Doe # 1 - 10 are sued in their individual and official capacities.

29. The names John/Jane Doe # 1 - 10 are fictitious, their true names being unknown to Mr. Jawaneh at this time.

STATEMENT OF FACTS

30. The Trespass Affidavit Program (TAP) was a New York City Police Department (NYPD) program also known as the “Clean Halls Program” in which police officers conducted interior patrols in certain privately-owned apartment buildings, which the NYPD discontinued in 2020.

31. Owners of residential buildings would submit a form affidavit providing the NYPD with the authority to conduct interior patrols of their buildings, much like private security.

32. This program permitted officers to come into the private building at any and all hours of the day without a specific request or complaint, to patrol, stop, arrest, or eject people in the building who were not tenants or invited guests.

33. In March 2012, the class plaintiffs in *Ligon v. City of New York* sued, alleging that NYPD officers stopped residents and visitors of TAP-enrolled buildings without reasonable suspicion and that officers arrested individuals for criminal trespass in and around those buildings without probable cause. *See, generally Ligon v. City of New York*, 12 Civ. 2274 (SAS) (S.D.N.Y.).

34. At that time, a survey “revealed that there were over eight thousand buildings enrolled in TAP, including over three thousand in the Bronx.”

35. On January 8, 2013, a preliminary injunction was issued against Defendant City of New York, preliminarily preventing it from continuing its TAP program. *See, generally Ligon v. City of New York*, 12 Civ. 2274 (SAS) (S.D.N.Y.) at Docket Entry No. 96.

36. In 2017, the *Ligon* plaintiffs and the City entered a Stipulation of Settlement, which was so-ordered by the Court. *See, generally Ligon v. City of New York*, 12 Civ. 2274 (SAS) (S.D.N.Y.) at Docket Entry No. 96.

37. The number of buildings enrolled in TAP declined year to year from 2017 until the program ended on September 30, 2020.

38. As part of the settlement, a monitor was directed to ensure that the NYPD was complying with the terms of the Court-ordered settlement.

39. In a report dated March 3, 2023, found that members of the NYPD were still engaging in TAP-like activities by self-initiating interior patrols and trespass enforcement at private buildings without a legitimate predicate to enter the buildings. The officers did so without some predicate of timely criminality or other legally justifiable reason to enter the private residential building.

40. The instant matter concerns actions by the Defendants engaging in such unconstitutional behavior.

41. On March 24, 2203, Mr. Jawaneh was a resident of 406 East 161st Street, Bronx, New York ("Subject Location").

42. Mr. Jawaneh was walking home that day and entered the Subject Location when the individual defendants entered the Subject Location with him.

43. The individual defendants told Mr. Jawaneh that he did not live in the building and demanded that he produce his identification to prove that he lived in the building.

44. The officer violently attached Mr. Jawaneh and prevented him from moving further into the Subject Location.

45. The officers then forced Mr. Jawaneh out of the Subject by violently assaulting and battering him.

46. Once outside the Subject Location, the individual defendants continued their violent assault and battery of Mr. Jawaneh.

47. Mr. Jawaneh then re-entered the Subject Location.

48. The individual defendants, again, prevented Mr. Jawaneh from moving further into the Subject Location by assaulting and battering Mr. Jawaneh.

49. They also threatened to use a taser on Mr. Jawaneh and held it against his back.

50. They then arrested Mr. Jawaneh.

51. The individual defendants placed the handcuffs on Mr. Jawaneh extremely tightly.

52. Mr. Jawaneh was able to capture the incident on video on his cell phone before the individual defendants took his cell phone.

53. The individual defendants then deleted the videos depicting the incident. However, they did not realize that the videos were still in a “recently deleted” folder on Mr. Jawaneh’s phone.

54. Mr. Jawaneh was taken to the 42nd Precinct and placed in a holding cell.

55. On the way to the precinct and at the precinct, Mr. Jawaneh begged the officers to loosen the handcuffs, but they refused to do so.

56. As a result, Mr. Jawaneh was caused to suffer injuries from the tight handcuffs.

57. Mr. Jawaneh was issued Summons No. 4448980233 by Defendant Aktaruzzaman.

58. In the summons, Defendant Aktaruzzaman lied and stated that Mr. Jawaneh’s home address was 234 East 149th Street, Bronx, NY 10451.

59. Defendant Aktaruzzaman also lied and stated that Mr. Jawaneh had violated Penal Law § 240.20(1) (disorderly conduct).

60. Mr. Jawaneh was released from the precinct.

61. The summons required Mr. Jawaneh to appear in Bronx Criminal Court on April 12, 2023, for his arraignment.

62. The charges against Mr. Jawaneh were dismissed in his favor on April 12, 2023.

63. Mr. Jawaneh suffered damage as a result of Defendants' actions. Mr. Jawaneh , *inter alia*, deprived of liberty and suffered emotional distress, physical injury, mental anguish, fear, pain, anxiety, embarrassment, humiliation, and damage to reputation.

64. On or about May 13, 2023, Mr. Jawaneh served upon, presented, and filed with Defendants a Notice of Claim in writing.

65. Defendants have refused or neglected to make any adjustment or payment.

FIRST CAUSE OF ACTION

Unlawful Stop (Federal)

66. Mr. Jawaneh repeats and re-alleges each and every allegation as if fully set forth herein.

67. Defendants violated the Fourth and Fourteenth Amendments because they stopped Mr. Jawaneh without reasonable suspicion or probable cause.

68. As a result of the foregoing, Mr. Jawaneh has been damaged in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter.

SECOND CAUSE OF ACTION

Unlawful Stop (State)

69. Mr. Jawaneh repeats and re-alleges each and every allegation as if fully set forth herein.

70. Defendants violated the New York State Constitution, Article I, § 12 because they stopped Mr. Jawaneh without reasonable suspicion or probable cause.

71. As a result of the foregoing, Mr. Jawaneh has been damaged in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter.

THIRD CAUSE OF ACTION

Unlawful Search (Federal)

72. Mr. Jawaneh repeats and re-alleges each and every allegation as if fully set forth herein.

73. Defendants violated the Fourth and Fourteenth Amendments because they searched Mr. Jawaneh without reasonable suspicion or probable cause.

74. As a result of the foregoing, Mr. Jawaneh has been damaged in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter.

FOURTH CAUSE OF ACTION

Unlawful Search (State)

75. Mr. Jawaneh repeats and re-alleges each and every allegation as if fully set forth herein.

76. Defendants violated the New York State Constitution, Article I, § 12 because they searched Mr. Jawaneh without reasonable suspicion or probable cause.

77. As a result of the foregoing, Mr. Jawaneh has been damaged in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter.

FIFTH CAUSE OF ACTION

False Arrest (Federal)

78. Mr. Jawaneh repeats and re-alleges each and every allegation as if fully set forth herein.

79. The individual defendants violated the Fourth and Fourteenth Amendments because they arrested Mr. Jawaneh without probable cause.

80. As a result of the foregoing, Mr. Jawaneh has been damaged in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter.

SIXTH CAUSE OF ACTION

False Arrest (State)

81. Mr. Jawaneh repeats and re-alleges each and every allegation as if fully set forth herein.

82. The individual defendants violated the New York State Constitution, Article I, § 12 because they arrested Mr. Jawaneh without probable cause.

83. As a result of the foregoing, Mr. Jawaneh has been damaged in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter.

SEVENTH CAUSE OF ACTION

Excessive Force (Federal)

84. Mr. Jawaneh repeats and re-alleges each and every allegation as if fully set forth herein.

85. The individual defendants violated the Fourth and Fourteenth Amendments because they used unreasonable force on Mr. Jawaneh.

86. As a result of the foregoing, Mr. Jawaneh has been damaged in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter.

EIGHTH CAUSE OF ACTION

Excessive Force (State)

87. Mr. Jawaneh repeats and re-alleges each and every allegation as if fully set forth herein.

88. The individual defendants violated the New York State Constitution, Article I, § 12 because they used unreasonable force on Mr. Jawaneh.

89. As a result of the foregoing, Mr. Jawaneh has been damaged in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter.

NINTH CAUSE OF ACTION
Fabrication of Evidence (Federal)

90. Mr. Jawaneh repeats and re-alleges each and every allegation as if fully set forth herein.

91. The individual defendants created false evidence against Mr. Jawaneh.

92. The individual defendants forwarded false evidence to prosecutors in the Bronx County District Attorney's Office.

93. In creating false evidence against Mr. Jawaneh, and in forwarding false evidence to prosecutors, the individual defendants violated Mr. Jawaneh's right to substantive due process under the Due Process Clause of the Fifth, Sixth, and Fourteenth Amendments of the Constitution of the United States.

94. As a result of the foregoing, Mr. Jawaneh has been damaged in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter.

TENTH CAUSE OF ACTION
Fabrication of Evidence (State)

95. Mr. Jawaneh repeats and re-alleges each and every allegation as if fully set forth herein.

96. The individual defendants created false evidence against Mr. Jawaneh.

97. The individual defendants forwarded false evidence to prosecutors in the Bronx County District Attorney's Office.

98. In creating false evidence against Mr. Jawaneh, and in forwarding false evidence to prosecutors, the individual defendants violated Mr. Jawaneh's right to substantive due process under the New York State Constitution, Article I, § 6.

99. As a result of the foregoing, Mr. Jawaneh has been damaged in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter.

ELEVENTH CAUSE OF ACTION
Malicious Abuse of Process (Federal)

100. Mr. Jawaneh repeats and re-alleges each and every allegation as if fully set forth herein.

101. The individual defendants issued and/or caused to be issued legal process to place Mr. Jawaneh under arrest in violation of the Fifth and Fourteenth Amendments of the United States Constitution.

102. The individual defendants arrested Mr. Jawaneh in order to obtain collateral objectives outside the legitimate ends of the legal process, to wit, to cover up their unlawful stop and search of Mr. Jawaneh.

103. The individual defendants pursued these collateral objectives after issuance of legal process by, *inter alia*, forwarding false evidence to the Bronx County District Attorney's Office and continuing to participate in the prosecution of Mr. Jawaneh.

104. The individual defendants acted with intent to do harm to Mr. Jawaneh without excuse or justification.

105. As a result of the foregoing, Mr. Jawaneh has been damaged in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter.

TWELFTH CAUSE OF ACTION
Abuse of Process (State)

106. Mr. Jawaneh repeats and re-alleges each and every allegation as if fully set forth herein.

107. The individual defendants issued and/or caused to be issued legal process to place Mr. Jawaneh under arrest in violation of the laws of the State of New York.

108. The individual defendants arrested Mr. Jawaneh in order to injure, harass, and cause economic injury to Mr. Jawaneh.

109. The individual defendants pursued these objectives after issuance of legal process by, *inter alia*, forwarding false evidence to the Bronx County District Attorney's Office and continuing to participate in the prosecution of Mr. Jawaneh.

110. The individual defendants acted with intent to do harm to Mr. Jawaneh without excuse or justification.

111. As a result of the foregoing, Mr. Jawaneh has been damaged in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter.

THIRTEENTH CAUSE OF ACTION
Malicious Prosecution (Federal)

112. Mr. Jawaneh repeats and re-alleges each and every allegation as if fully set forth herein.

113. The individual defendants initiated the criminal proceedings against Mr. Jawaneh by issuing and/or causing to be issued legal process against Mr. Jawaneh in violation of the Fourth and Fourteenth Amendments of the United States Constitution.

114. The individual defendants lacked probable cause to commence the criminal proceedings against Mr. Jawaneh.

115. The individual defendants' actions were motivated by actual malice.

116. The criminal proceedings were terminated in favor of Mr. Jawaneh.

117. As a result of the foregoing, Mr. Jawaneh has been damaged in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter.

FOURTEENTH CAUSE OF ACTION
Malicious Prosecution (State)

118. Mr. Jawaneh repeats and re-alleges each and every allegation as if fully set forth herein.

119. The individual defendants initiated the criminal proceedings against Mr. Jawaneh by issuing and/or causing to be issued legal process against Mr. Jawaneh in violation of the laws of the State of New York.

120. The individual defendants lacked probable cause to commence the criminal proceedings against Mr. Jawaneh.

121. The individual defendants' actions were motivated by actual malice.

122. The criminal proceedings were terminated in favor of Mr. Jawaneh.

As a result of the foregoing, Mr. Jawaneh has been damaged in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter.

FIFTEENTH CAUSE OF ACTION
Failure to Intervene (Federal)

123. Mr. Jawaneh repeats and re-alleges each and every allegation as if fully set forth herein.

124. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct; had an opportunity to prevent such conduct; had a duty to intervene and prevent such conduct; and failed to intervene.

125. Accordingly, the defendants who failed to intervene violated the Fourth, Fifth, and Fourteenth Amendments of the Constitution of the United States.

126. As a result of the foregoing, Mr. Jawaneh has been damaged in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter.

SIXTEENTH CAUSE OF ACTION
Negligent Supervision & Retention

127. Mr. Jawaneh repeats and re-alleges each and every allegation as if fully set forth herein.

128. Defendant City of New York knew or should have known of the individual defendants' propensity for the conduct alleged herein.

129. Defendant City of New York failed to take any steps to protect Mr. Jawaneh from the actions and/or inactions of the individual defendants.

130. The injuries sustained by Mr. Jawaneh were the result of the negligent retention and/or supervision of the individual defendants by Defendant City of New York.

131. The individual defendants were supervisors, co-employees, and/or working together at the NYPD.

132. The individual defendants were negligent in that they failed to ensure that their co-employees provided proper supervision.

133. Despite knowing that their subordinates and/or co-employees were negligent, Defendants continued to employ the individual defendants, and took no steps to rectify their actions.

134. As a result of the foregoing, Mr. Jawaneh was caused to suffer severe personal injuries.

135. Said injuries were the result of the negligent, careless, reckless, wanton, illegal, and improper acts of the defendants, their agents, servants, or employees, including, but not limited to, failing to supervise the individual defendants; in violating the New York State Human Rights Law; in violating the New York City Administrative Code; in violating N.Y. C.P.L. § 160.50; in violating N.Y. C.P.L. § 160.55; in allowing Defendants welfare to become endangered; in failing to create and implement policies to prevent violations of N.Y. C.P.L. §§ 160.50 and 160.55; and in otherwise being negligent.

136. As a result of the foregoing, Mr. Jawaneh has been damaged in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter.

SEVENTEENTH CAUSE OF ACTION

Negligence

137. Mr. Jawaneh repeats and re-alleges each and every allegation as if fully set forth herein.

138. Defendants failed to take any steps to protect Mr. Jawaneh, including providing supervision.

139. As a result of the foregoing, Mr. Jawaneh was caused to suffer severe personal injuries.

140. Said injuries were the result of the negligent, careless, reckless, wanton, illegal, and improper acts of the defendants, their agents, servants, or employees, including, but not limited to, failing to supervise the individual defendants; in violating the New York State Human Rights Law; in violating the New York City Administrative Code; in allowing Mr. Jawaneh's welfare to become endangered; and in otherwise being negligent.

141. As a result of the foregoing, Mr. Jawaneh has been damaged in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter.

EIGHTEENTH CAUSE OF ACTION

Assault

142. Mr. Jawaneh repeats and re-alleges each and every allegation as if fully set forth herein.

143. The individual defendants intentionally acted to place Mr. Jawaneh in apprehension of imminent harmful or offensive bodily contact.

144. Mr. Jawaneh suffered apprehension of imminent harmful or offensive bodily contact.

145. As a result of the foregoing, Mr. Jawaneh has been damaged in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter.

NINETEENTH CAUSE OF ACTION

Battery

146. Mr. Jawaneh repeats and re-alleges each and every allegation as if fully set forth herein.

147. The individual defendants intended to make bodily contact with Mr. Jawaneh.

148. The individual defendants made bodily contact with Mr. Jawaneh.

149. Consequently, Mr. Jawaneh suffered bodily contact which was harmful, offensive, and without Mr. Jawaneh's consent.

150. As a result of the foregoing, Mr. Jawaneh has been damaged in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter.

TWENTIETH CAUSE OF ACTION
Equal Protection Clause under 42 U.S.C. § 1983

151. Mr. Jawaneh repeats and re-alleges each and every allegation as if fully set forth herein.

152. The Defendants' conduct was tantamount to discrimination against Mr. Jawamej based on ethnicity. This disparate treatment caused Mr. Jawaneh to suffer serious injuries.

153. The NYPD discriminatory program is pervasive and evident throughout many of its practices, including those used to stop, question, and arrest Mr. Jawaneh's.

154. The NYPD has maintained illegal stop and question practices, as part of a systematic discriminatory program aimed towards minorities. The searches occur nearly every day without the requisite level of suspicion and are so customary as to constitute official municipal policy.

155. One such program is the Clean Halls Buildings program, as set forth more fully above, which initially created to combat illegal activity in apartment buildings. Many buildings were enrolled in the program without regard to whether there is sustained or substantial crime. Thus, residents and their unsuspecting guests are left subject to the unscrupulous stop, question, search, citation, and arrest practices of local NYPD officers.

156. The impact on Blacks and Latinos as compared to Whites is disparaging and significant. From 2006 to 2010, approximately 94.4% of those stopped and questioned for trespassing were Black and Latino, although they only accounted for 52% of the New York City population. Blacks and Latinos were 6 times more likely to be stopped by police than Whites, Asians, and Native Americans combined.

157. The NYPD has also maintained illegal stop and frisk policies, as part of a systematic discriminatory program aimed towards minorities.

158. The New York State Attorney General's 1999 inquiry into the NYPD's stop and frisk program found that between the 175,000 "UF-250" stop and frisk forms filed by officers indicated consistent and significant racial skewing.

159. According to the report, Blacks comprised 25.6% of the City's population, yet 50.6% of all persons stopped were Black. Hispanics comprised 23.7% of the City's population yet, 33.0% of all stops were of Hispanics. By contrast, Whites made up 43.4% of the City's population, but accounted for only 12.9% of all stops. The disparities were further pronounced in precincts where the majority of the population was White. Where Blacks and Hispanics each represent less than 10% of the population, Blacks and Hispanics accounted for more than 50% of stops during any given period. The New York State Attorney General's finding was that 8 out of 9 searches did not uncover contraband.

160. Under the NYPD's policy, if a person is stopped and questioned without official use of force (or with consent) and gives his or her name, documentation is not required. Consequently, NYPD officers frequently do not to file the proper UF-250 form to record stop and frisk searches.

161. Many experts believe the numbers available from NYPD offices do not accurately reflect the discrimination of the NYPD's stop and frisk program. In one independent street interview conducted with 100 Black and Hispanic males between the ages of 14 and 35, 81 participants reported having been stopped, patted down and questioned, without being arrested.

162. The NYPD arrests more Blacks, Hispanics, and other minorities as compared to Whites in furtherance of its systematic discriminatory program.

163. The NYPD frequently uses marijuana arrest cases to bolster both its productivity and arrest reports. Marijuana possession is an infraction payable by fine in New York City, yet from 1997 to 2006, 52% Blacks, 31% Hispanics were arrested for possession of marijuana, as compared to 15% of Whites.

164. Despite the overwhelming evidence from U.S. government surveys that have consistently shown young Whites between the ages of 18 and 25 using marijuana at higher rates than either young Hispanics and Blacks, in 2006, the marijuana arrest rate of Blacks was five times that of Whites. The arrest rate of Hispanics in 2006 was nearly three times that of Whites.

165. Arrest records consistently show that where minorities represent a small portion of the population, they also represent the majority of arrestees (with the exception of Staten Island). In Staten Island, Blacks were about 10% of the population, but were 37% of marijuana arrestees. In Manhattan, Blacks were about 17% of the population, but accounted for 43% of marijuana arrestees. In Queens, Blacks were about 20% of the population, but accounted for 57% of marijuana arrestees. In Brooklyn, Blacks were about 36% of the population, but were an overwhelming 65% of marijuana arrestees. Finally, in the Bronx, Blacks were 36% of the population, but accounted for 48% of marijuana arrestees. The White population and the White percentage of marijuana arrestees in each borough were equally skewed, but in the opposite direction.

166. Trespassing and marijuana arrests are the most effective means available for obtaining fingerprints, photographs, and DNA samples (since 2006) from people never before

entered in the criminal justice databases. Where those trespassing and marijuana stops result in the issuance of a fine rather than arrest, the outcome is often still detrimental. Often times, young persons in the housing projects (such as those enrolled in the Clean Halls Buildings program) or other poor neighborhoods do not have the means to pay the fines, and a criminal courts will issue a warrant for their arrest. Many times, the subsequent occasion on which that person is stopped, questioned, frisked, or searched by the NYPD, the outstanding warrant will ultimately serve as a basis for arrest.

167. As a result of the foregoing, Mr. Jawaneh was deprived of rights under the Equal Protection Clause of the Constitution of the United States, and are thereby entitled to damages.

TWENTY-FIRST CAUSE OF ACTION

Monell

168. Mr. Jawaneh repeats and re-alleges each and every allegation as if fully set forth herein.

169. This is not an isolated incident. Defendant City of New York, through its policies, customs, and practices, directly caused the constitutional violations suffered by Mr. Jawaneh.

170. Defendant City of New York, through the NYPD, has had, and still has, hiring practices that it knows will lead to the hiring of police officers lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the Constitution of the United States and is indifferent to the consequences.

171. Defendant City of New York, at all relevant times, was aware that the individual defendants routinely committed constitutional violations such as those at issue here and has failed to change its policies, practices, and customs to stop this behavior.

172. Defendant City of New York, at all relevant times, was aware that the individual defendants are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

173. As one commentator discussing police officer veracity indicates: some experts on police practice treat lying by police at trials and in their paperwork as the “norm,” “commonplace,” or “routine.” Michelle Alexander, *Why Police Lie Under Oath*, N.Y. Times, Feb. 2, 2013 (“In 2011, [in New York City] hundreds of drug cases were dismissed after several police officers were accused of mishandling evidence. That year, Justice Gustin L. Reichbach of the State Supreme Court in Brooklyn condemned a widespread culture of lying and corruption in the department’s drug enforcement units . . . ‘this court was shocked, not only by the seeming pervasive scope of misconduct but even more distressingly by the seeming casualness by which such conduct is employed.’”).

174. A NYPD official took the position that the problem of perjury is not pervasive within the department, and that the tendency of police officers to fabricate testimony is no greater than that of non-police witnesses. Joseph Goldstein, *Scrutiny of Decorated Detective Raises Specter of Lying as Routine*, N.Y. Times, Oct. 11, 2017 (“Lawrence Byrne, the [police] department’s top legal official” stated that the department does not have “‘a widespread perjury problem . . . I don’t believe—although no one has done an empirical study—that the incidence of perjury among police officers is any higher or lower than the incidence of perjury among other categories of witnesses, which includes civilian witnesses, complainants, expert witnesses.’”).

175. This statement misses the point. Police officers, unlike civilians, have the power to terminate constitutionally protected liberty; with this power comes great responsibility, as well as

the need for appropriate oversight. *See, e.g., N.Y.P.D. Officers Are Charged with Lying About a Suspect*, Feb. 16, 2017 (“Cyrus R. Vance Jr., the Manhattan district attorney, said the charges against the detectives were a ‘gross violation of their training, N.Y.P.D. protocol and the law. When members of law enforcement commit misconduct,’ he added, ‘they threaten the credibility of our work and the safety of the citizens whom we are sworn to protect.’”).

176. Defendant City of New York has failed to take reasonable steps to control lying by police officers is a policy of the NYPD.

177. Defendant City of New York has long been aware of a wide-spread practice of false arrests at the end of tours of duty in order to obtain overtime and to satisfy quota policies.

178. Defendant City of New York has failed to sufficiently address this practice.

179. Defendant City of New York also has a policy of not tracking or adequately disciplining police officers for testifying falsely.

180. Defendant City of New York has failed to supervise or properly discipline police officers with a record of being unsuccessful defendants in 42 U.S.C. § 1983 cases because they fabricated evidence.

181. Defendant City of New York, through the NYPD, has a *de facto* quota policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence, and perjury.

182. This quota policy requires that police officers, including the individual defendants named herein, make a certain number of arrests and/or write a certain number of summonses and desk appearance tickets within an allocated time period.

183. Officers that meet the required number of arrests, summonses, and desk appearance tickets are classified as active officers.

184. Officers that do not meet the required number of arrests, summonses, and desk appearance tickets are classified as inactive officers.

185. Active officers are given promotion opportunities that are not afforded to inactive officers.

186. Active officers are given overtime opportunities, such as security at parades, etc., that are not afforded to inactive officers.

187. The quota policy does not differentiate between arrests, summonses, and desk appearance that are supported by probable cause and ones that are not.

188. Defendant City of New York, through the NYPD, does nothing to ensure that officers, in trying to fulfill this quota policy, are making arrests and issuing summonses and desk appearance tickets lawfully. There are no post-arrest investigations that are performed, and no policies in place that would prevent abuse of this policy, such as is demonstrated in the instant case.

189. Defendant City of New York, through the NYPD, does nothing to determine the outcome of the charges levied against arrestees in order to proper counsel officers as to the lawfulness of their arrests/issuance of summonses and desk appearance tickets.

190. The failure of Defendant City of New York to, *inter alia*, take these steps encourages, *inter alia*, unlawful stops, unlawful searches, false arrests, the fabrication of evidence, and perjury, in that the quota policy provides, *inter alia*, career and monetary incentives to officers, including the individual defendants herein.

191. Defendant City of New York, through the NYPD, has a *de facto* overtime policy that encourages and incentivizes unlawful stops, unlawful searches, false arrests, the fabrication of evidence, and perjury.

192. Defendant City of New York, through the NYPD, provides officers, including the individual defendants herein, with overtime opportunities when arrest are made, or summonses and desk appearance tickets are issued.

193. Upon making an arrest or issuing summons or desk appearance ticket, an arresting officer submits a request for overtime to his commanding officer.

194. These requests are essentially rubberstamped, with commanding officers performing no investigation into the circumstances of the arrest.

195. Defendant City of New York, through the NYPD, does not perform any post-arrest investigation and there are no policies in place to prevent abuse of this overtime policy.

196. As a result of this overtime policy, officers, including the individual officers named herein, abuse this overtime policy, making baseless arrests and wrongfully issuing summonses and desk appearance tickets to substantially supplement their income through overtime pay.

197. The Trespass Affidavit Program (TAP) was a New York City Police Department (NYPD) program also known as the “Clean Halls Program” in which police officers conducted interior patrols in certain privately-owned apartment buildings, which the NYPD discontinued in 2020.

198. Owners of residential buildings would submit a form affidavit providing the NYPD with the authority to conduct interior patrols of their buildings, much like private security.

199. This program permitted officers to come into the private building at any and all hours of the day without a specific request or complaint, to patrol, stop, arrest, or eject people in the building who were not tenants or invited guests.

200. In March 2012, the class plaintiffs in *Ligon v. City of New York* sued, alleging that NYPD officers stopped residents and visitors of TAP-enrolled buildings without reasonable suspicion and that officers arrested individuals for criminal trespass in and around those buildings without probable cause. *See, generally Ligon v. City of New York*, 12 Civ. 2274 (SAS) (S.D.N.Y.).

201. At that time, a survey “revealed that there were over eight thousand buildings enrolled in TAP, including over three thousand in the Bronx.”

202. On January 8, 2013, a preliminary injunction was issued against Defendant City of New York, preliminarily preventing it from continuing its TAP program. *See, generally Ligon v. City of New York*, 12 Civ. 2274 (SAS) (S.D.N.Y.) at Docket Entry No. 96.

203. In 2017, the *Ligon* plaintiffs and the City entered a Stipulation of Settlement, which was so-ordered by the Court. *See, generally Ligon v. City of New York*, 12 Civ. 2274 (SAS) (S.D.N.Y.) at Docket Entry No. 96.

204. The number of buildings enrolled in TAP declined year to year from 2017 until the program ended on September 30, 2020.

205. As part of the settlement, a monitor was directed to ensure that the NYPD was complying with the terms of the Court-ordered settlement.

206. In a report dated March 3, 2023, found that members of the NYPD were still engaging in TAP-like activities by self-initiating interior patrols and trespass enforcement at

private buildings without a legitimate predicate to enter the buildings. The officers did so without some predicate of timely criminality or other legally justifiable reason to enter the private residential building.

207. Defendant City of New York has failed to sufficiently address this practice.

208. Defendant City of New York also has a policy of not tracking, adequately supervising, or adequately disciplining police officers who engage in TAP-like activities.

209. These policies, practices, and customs were the moving force behind the injuries of Mr. Jawaneh.

PRAYER FOR RELIEF

WHEREFORE, Mr. Jawaneh respectfully requests judgment against Defendants as follows:

- (a) Compensatory damages against all defendants, jointly and severally, on each cause of action;
- (b) Punitive damages against the individual defendants, jointly and severally, on each cause of action;
- (c) Reasonable attorney's fees and costs pursuant to 28 U.S.C. § 1988; and
- (d) Such other and further relief as this Court deems just and proper.

Dated: New York, New York
February 2, 2024

By: /s/
Gregory Paul Mouton, Jr., Esq.
Law Office of Gregory P. Mouton, Jr., LLC
Attorneys for Plaintiff Mamud Jawaneh
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New York, NY 10018
Phone: (646) 706-7481

ATTORNEY'S VERIFICATION

I, the undersigned, an attorney admitted to practice in the Courts of New York State, states under penalty of perjury that I am the attorney for Plaintiff Mamud Jawaneh in the within action; I have read the foregoing Verified Complaint and know the contents thereof; and the same is true to my own knowledge, except as to the matters I believe to be true. The reason this verification is made by me and not by my client is that my client is not presently in the County where I maintain my offices. The grounds of my belief as to all matters not stated upon my knowledge are the materials in my file and the investigation conducted by my office.

Dated: New York, New York
February 2, 2024

/s/
Gregory Paul Mouton, Jr., Esq.

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

MAMUD JAWANEH,

Plaintiff,

-against-

CITY OF NEW YORK, JOAN CORDERO, DANNY AGUILAR, SHEIKH
AKTARUZZAMAN, HILMEE KASSIM, and JOHN/JANE DOE # 1 - 10,

Defendants.

VERIFIED COMPLAINT

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